



Procedure No: EXP202311794 (PS/00218/2024)

SANCTIONING PROCEDURE RESOLUTION

From the actions carried out by the Spanish Agency for Data Protection and based on the following,

BACKGROUND

FIRST: On 04/07/23, A.A.A. (the complaining party) filed a complaint with the Spanish Agency for Data Protection (AEPD).

The complaint is directed against the entity INFRAESTRUCTURA LIMPIEZA IMAGEN OZONO S.L. with CIF: B67914275 (the complained party), for the alleged violation of Law 11/2022, of June 28, General Telecommunications Law (LGTEL).

The facts stated by the complainant in their writing concern the receipt of commercial calls on their mobile line from the phone number ***TELÉFONO.1 without their consent. Along with the complaint documents, the following documentation is attached: - Certificate proving registration in the Robinson List for the receiving line ***TELÉFONO.2 since 21/07/18 and a screenshot of the call log received on 28/06/23 from the phone number ***TELÉFONO.1.

SECOND: On 05/09/23, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to ***EMPRESA.1, for analysis and to report back within one month on the matters raised in the complaint.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) by means of electronic notification, was received by the responsible party (***NIF.1; B.B.B.) within the time frame for its availability, on 11/09/23. There is no record of any response being submitted to this Agency regarding the transfer made.

THIRD: On 04/10/23, the Director of the Spanish Agency for Data Protection issued an agreement admitting the processing of the complaint, in accordance with Article 65 of the LOPDGDD.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities under Article 58.1 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, on the Protection of Natural Persons with regard to the Processing of Personal Data and on the Free Movement of such Data (GDPR) and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, carrying out, among others, the following actions and being aware, among other things, of the following points:

- During the present actions, the entity ***EMPRESA.1 was investigated.
- In response to the request made to the entity ***EMPRESA.1, it stated that the data of the phone numbers to be called are obtained through web forms or by purchasing databases dedicated to this purpose. In this case, the complainant's data was obtained through 'https://pruebaya.com', with a form to fill out. The purpose of the calls is merely informative regarding the subsidies from the Junta de Andalucía for the installation of solar panels, consulting the Robinson list beforehand and filtering to avoid calling these numbers, and it states that the list of calls provided by the complainant was not made by ***EMPRESA.1.
- In the acknowledgment of receipt of the request, it is noted that the person who accepted it was B.B.B. (***NIF.1).
- The identity of the holder of the telephone line ***TELÉFONO.1 on the day the events occurred, 28/06/23, was consulted with GAMMA OPERADORA DE TELECOMUNICACIONES, S.L.U. (the operator of the phone number in question as recorded in the diligence carried out on 26/02/24), obtaining as a response that the holder was, on the indicated date, the entity INFRAESTRUCTURA LIMPIEZA IMAGEN OZONO S.L. NIF: B67914275.
- Information was requested from the entity INFRAESTRUCTURA LIMPIEZA IMAGEN OZONO S.L., with the acknowledgment of receipt indicating that the date of access to the content of the notification

was 08/04/24, with the person who accepted it being B.B.B. (**NIF.1).

- It has been verified in the Central Commercial Registry that the administrator of both entities (**EMPRESA.1 and INFRAESTRUCTURA LIMPIEZA IMAGEN OZONO S.L. with NIF: B67914275) is the same person, B.B.B. (**NIF.1).

FIFTH: On 15/05/24, a response was received in this Agency to the request made to the entity INFRAESTRUCTURA LIMPIEZA IMAGEN OZONO S.L. (ILIO ENERGY), where it is stated, among other issues, that:

- The data held about the complainant is obtained through web forms or by purchasing databases from companies dedicated to this; the data is obtained through 'https://pruebaya.com', with a form to fill out or advertisements on social media (SEM), internet positioning (SEO), or advertisements in signage media, among others.
- The purpose is solely informative regarding the subsidies from the Junta de Andalucía for the installation of solar panels.
- The data has only been used for a possible telephone contact; if such contact is not desired, it is deleted. Robinson filters are applied to avoid possible annoying calls to the user.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/6

SIXTH: On 13/06/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violation of Article 48.1.b) of Law 9/2014, of May 9, on Telecommunications (LGT), in force at the time the events occurred on 28/06/23, in relation to Article 23.4 of the LOPDGGD. In the opening agreement, it was determined that the sanction that could correspond, considering the existing evidence and without prejudice to what resulted from the instruction, would amount to a total of 2,000 (two thousand euros).

The notification of the initiation of the file was carried out in accordance with the rules established in the LPACAP. According to a certificate from the Postal Service, the initiation document was returned to the sender on 16/07/24, and on 23/10/24, the notification of the initiation agreement was made by announcement in the Single Edict Board of the Official State Bulletin, in accordance with Article 44 of the LPACAP.

SEVENTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, this Agency received a written statement of allegations from the accused party based on the following:

- That the sanction is disproportionate, as the infringement was limited to a single call to the complainant without intent to cause harm or bad faith. They request the file to be closed as the conduct ceased upon becoming aware of the facts.
- The company has never committed previous infringements in data protection matters nor has it been sanctioned, and that the reported conduct had no public significance nor affected the rights of third parties.
- They consider the infringement to be an isolated incident, without obtaining economic benefits or causing material or personal damages.
- They claim to have fully cooperated with the Administration, responding to all requests and not repeating conduct that causes annoyance.
- In the event that the closure is not accepted, they request that the minimum sanction be applied, such as a warning or admonition, considering the proposed economic sanction to be disproportionate.

LEGAL GROUNDS

I-

Competence

In accordance with the provisions of Article 114.1.b) of the LGTEL (in force at the time of the initiation of the sanctioning procedure), the Director of the Spanish Agency for Data Protection is competent to

initiate and resolve this sanctioning procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II.-

Prescription of the infringement

The facts stated by the complainant in their writing concern the receipt of commercial calls on their mobile line from the phone number ***PHONE.1 without their consent, attaching a screenshot of the call log received on 28/06/23 from that number to corroborate it.

For these reasons, on 13/06/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violation of Article 48.1.b) of the LGT (in force at the time the events occurred), being notified to the accused party through the Single Edict Board of the BOE on 23/10/24.

In the initiation document, it was indicated in the Legal Ground "IV.- Proposal of sanction" that this infringement is classified as "minor," under Article 78.11) of the LGT.

Well, according to Article 83.1 of the aforementioned regulation:

1. The infringements regulated in this Law shall prescribe, very serious ones, in three years; serious ones, in two years; and minor ones, in one year.

The prescription period for infringements shall begin to be computed from the day they were committed. The initiation of the sanctioning procedure, with the knowledge of the interested party, shall interrupt the prescription. The prescription period shall resume if the sanctioning file has been suspended for more than one month for reasons not attributable to the alleged responsible party (...).

For its part, Article 30.2 of the LPACAP establishes that:

"2. The prescription period for infringements shall begin to be counted from the day the infringement was committed. In the case of continued or permanent infringements, the period shall begin to run from the end of the infringing conduct.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/6

The initiation, with the knowledge of the interested party, of an administrative procedure of a sanctioning nature will interrupt the statute of limitations."

Therefore, according to the provisions of the transcribed article, the infringement is to be understood as time-barred if, more than one year has elapsed from the date of the facts, and the notification of the initiation of the file has not been made to the accused.

In the case at hand, from the documentation provided by the claimant, the unwanted commercial call took place on 28/06/23 and the notification of the initiation of the sanctioning file occurred on 23/10/24 (the date of publication in the Official State Gazette's Single Bulletin Board), so, based on Article 83.1 of the General Tax Law (LGT), cited, the alleged infringement must be understood as time-barred.

III.

Proposal for resolution in sanctioning procedures.

Article 89 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPAC), establishes, regarding the "Proposal for resolution in sanctioning procedures" that:

1. The instructing body will resolve the conclusion of the procedure, archiving the proceedings, without the need to formulate a proposal for resolution, when it is evident in the instruction of the procedure

that any of the following circumstances occur:

- a) The non-existence of the facts that could constitute the infringement.
- b) When the facts are not proven.
- c) When the proven facts do not manifestly constitute an administrative infringement.
- d) When there is no person or persons responsible, or they appear to be exempt from responsibility.
- e) When it is concluded, at any time, that the infringement has expired.

Therefore, in accordance with what has been indicated by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO DECLARE the TIME-BAR of the alleged infringement committed in the present sanctioning procedure, with the number EXP202311794 (PS/00218/2024), proceeding to archive the proceedings.

SECOND: TO NOTIFY this Resolution to INFRAESTRUCTURA LIMPIEZA IMAGEN OZONO S.L.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Mar España Martí

Director of the Spanish Agency for Data Protection.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es